perceived as an admission of responsibility, which would not bode well for the party's fortunes in the forthcoming elections in Bihar.[11]

The people of Bihar delivered a more decisive verdict in the election of October–November 2005. The JDU and the BJP collectively gained fifty-one additional seats from their performance in the February elections, most of which were at the expense of the RJD and the LJP. This gave the NDA a comfortable majority in the assembly. Governor Singh had to 'swallow his pride'[12] and invite the NDA to form the government. Nitish Kumar was sworn in as chief minister. Governor Singh's position remained vulnerable to any criticism that could be forthcoming from the Supreme Court's reasoned decision.

The court's reasoned decision came about two months later, on 24 January 2006, two days before Republic Day. It was argued on behalf of the four MLAs that the President lacked the authority to dissolve the assembly in circumstances where the first meeting of the assembly had not yet taken place. The logic of the argument was simple – it is impossible to dissolve an assembly that has not yet come into existence. Chief Justice Sabharwal rejected this argument on the basis that no provision of the Constitution stipulated that an assembly could only be dissolved after its first meeting. The argument would also yield unintended consequences, for it could imply that there would be a constitutional stalemate in the event that no political party came forward to stake a claim to the government following an election. If no political party staked a claim to form the government, the assembly could not be convened, and therefore could also not be dissolved to enable fresh elections to be called.

While the court rejected the argument that the President could *never* dissolve a legislative assembly before its first meeting, it held that the decision to dissolve the assembly was unconstitutional in that instance. The dissolution was based exclusively on Governor Buta Singh's reports. The governor lacked any credible material in support of his conclusion that an attempt was being made to win over opposition MLAs through bribes and other allurements. Chief Justice Sabharwal also observed that the governor's primary task was simply to ascertain whether a political party or alliance